

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2024-009268

BETWEEN:

DR MARCUS WEBB

Appellant

- and -

ASHWORTH & PARTNERS SOLICITORS

Respondent

RESPONDENT'S SKELETON ARGUMENT

A. INTRODUCTION

1. The Respondent denies negligence and maintains that it provided appropriate advice within the scope of its retainer, which was limited to conveyancing matters and did not extend to investment advice.

B. RELEVANT FACTS

2. The Respondent was retained solely to handle the conveyancing aspects of the transaction.
3. The retainer did not extend to providing investment advice or conducting due diligence on the developer.
4. The Appellant was advised in writing to seek independent financial advice before proceeding.
5. The Appellant confirmed in writing that he understood the investment risks involved.
6. The structure of the investment was clearly explained in the documentation provided.

C. LEGAL FRAMEWORK

7. The relevant statutory provisions are:
 - Solicitors Act 1974
 - Limitation Act 1980, s.14A

D. SUBMISSIONS

8. The scope of the retainer was limited to conveyancing and did not extend to investment advice.

9. The Respondent fulfilled its obligations under the retainer.
10. The Appellant was advised to seek independent financial advice and chose not to do so.
11. Any loss was caused by the Appellant's own decision to proceed without proper financial advice.

E. AUTHORITIES

12. The following authorities are relied upon:
 - SAAMCo v York Montague Ltd [1997] AC 191
 - Hughes-Holland v BPE Solicitors [2017] UKSC 21
 - Gabriel v Little [2017] UKSC 21

F. RELIEF SOUGHT

13. The Respondent respectfully requests that this Court:
 - Dismiss the claim
 - Alternatively, contributory negligence reduction of 75%
 - Costs

Sarah Thompson KC

David Roberts

7 October 2022

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